

BC682799 BC682799

County: los-angeles

Division: Civil Law and Motion

Department: 310

Hearing date: 2026-09-10

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Case Number: BC682799 Hearing Date: September 10, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 310

Hearing Date: September 10, 2026

Case Name: Setareh v. Monterey Bay View Estates, LLC, et al.

Case No.: BC682799

Matter: Motion for Charging Order

Moving Party: Plaintiff Kayvan Setareh

Responding Party: Unopposed

Ruling: The Motion is granted.

Moving party to give notice.

The Court encourages all parties to appear remotely via LA CourtConnect. If submitting on the Court's tentative ruling, please follow the instructions provided above.

Plaintiff Kayvan Setareh now seeks a charging order against Defendant Mike Amidnamin's membership interest in 705 W. EL SEGUNDO, LLC.

When a money judgment is rendered against the partner or member personally, and not against the partnership or limited liability company, the partner's or member's interest may be reached by a charging order under Corp.C. 15907.03 (limited partnership; incorrectly cited as Corp.C. 15907.3); Corp.C. 16504 (general partnership); or Corp.C. 17705.03 (limited liability company). (C.C.P. 708.310.) (See Phillips, Spallas & Angstadt, LLP v. Fotouhi (2011) 197 C.A.4th 1132, 1140, 128 C.R.3d 320 [trial court had authority to enter charging order against judgment debtor's partnership and successor corporation that was continuation of partnership; debtor had taken several measures to avoid paying judgment, and order against partnership only was not likely to be effective in satisfying judgment]; C.J.E.R., Judges Benchbook: Civil Proceedings—After Trial § 7.79; Rutter Group, 2 Enforcing Judgments and Debts § 6:1465 et seq.; C.E.B., 2 Debt Collection Practice 2d, § 11.7 et seq.)

Because it appears that Amidnamin has an interest in 705 W. EL SEGUNDO, LLC and there is no opposition, the Motion is granted.

Moving party to give notice.